

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 09/23/2026

Case #	Case Name	Tentative
01375476	Rodriguez – Trust	TENTATIVE RULING Case: Rodriguez – Trust 01375476 Calendar No: 1 Date: 09/23/26 MOTION TO COMPEL INITIAL RESPONSES TO FORM INTERROGATORIES (ROA 89) MOTION TO DEEM REQUESTS FOR ADMISSION ADMITTED (ROA 90) Petitioner Devara Mathias moves to compel initial responses to form interrogatories, set two. Petitioner also moves to deem requests for admission, set two, admitted. These motions are unopposed despite proof of service. Both motions are GRANTED. The evidence before the court is that Petitioner propounded second sets of Form Interrogatories and Requests for Admission on Respondent Rosalia Mattern on 1/15/26 by mail from out of state. Responses were due 2/24/26. No responses to the discovery have been served to date. Moving party need not show anything more to obtain an order compelling initial responses to discovery. (Code of Civ. Proc. §§ 2030.290; 2031.300 see also <i>Leach v. Sup.Ct.</i> (1980) 111 Cal.App.3d 902, 905-906.) Moving party need not showing any more to obtain an order deeming facts admitted. (Code Civ. Proc. § 2033.280(b).)

		Pursuant to Code of Civil Procedure sections 2030.290(c), 2031.300(c), and 2033.280(c), the court imposes monetary sanctions against Rosalia Mattern in the amount \$2,120.00 (5.0 hours x \$400 ph + \$120.00 in filing costs). <u>ORDERS</u> The court ORDERS Respondent Rosalia Mattern to respond to the Form Interrogatories, Set Two, without objection within 10 days of notice of this ruling, extended for method of service. The court DEEMS ADMITTED Requests for Admission Nos. 8-12. The court imposes reasonable sanctions of \$2,120.00 against Respondent Rosalia Mattern payable within 30 days of notice of this ruling, extended for method of service, or any further date as agreed upon by the parties in writing. Counsel for moving party is ordered to give notice of this ruling. Alternatively, counsel for moving party may elect to prepare, file, and serve a Proposed Order After Hearing.
01498382	Sample - Conservatorship	TENTATIVE RULING Case: Sample - Conservatorship 01498382 Calendar No: 2 Date: 09/23/26 MOTION TO SEAL (ROA 101) Conservator Tafrica Leggett moves to seal court records. (ROA 101.) Unless confidentiality is required by statute or rule of court, California court records are presumed to be open to the public. (Cal. Rules of Court, rule 2.550(c).) "Probate proceedings . . . are not closed proceedings. No statute exempts probate files from the status of public records." (<i>Copley Press, Inc. v. Superior Court</i> (1998) 63 Cal.App.4th 367, 376.) When individuals employ the public powers of state courts to accomplish private ends, "they do so in full knowledge of the possibly disadvantageous circumstance that the documents and records filed ... will be open to public inspection." (<i>Ibid.</i>)